

		Statute of Limitations Elevated Health seeks reimbursement for claims for services provided between January 8, 2021 and November 18, 2023 and this action was filed on October 1, 2025. Aetna argues the UCL, open book account, and account stated claims are all subject to a four-year statute of limitations and are time-barred. Further the claims for goods and services rendered and breach of implied contract are subject to a two-year statute of limitations and are time-barred. Aetna’s arguments fail, as the FAC does not show on its face when Aetna refused to pay Plaintiff’s invoices. (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316 [“ ‘In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.’ ”].) Thus, the Demurrer on statute of limitations grounds is OVERRULED. Moving party to give notice. 3. Case Management Conference
104	Smart Solutions, Inc. vs. Magic Brush Car Wash, LP 24-01423896	Motion to Be Relieved as Counsel of Record Bryan Theis/Theis Law Group, PC (“Moving Counsel”) moves to be relieved as Counsel of Record for Defendant/Cross-Complainant Magic Brush Car Wash, LP. The Motion is GRANTED. On June 9, 2026, Moving Counsel filed proof of service showing service of the notice of continuance and moving papers on the client on June 9, 2026, by first-class mail. (ROA 84.)

		Additionally, Moving Counsel has lodged an updated Proposed order reflecting the current trial date of October 19, 2026. (ROA 90.) Moving Counsel has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16, based on a conflict of interest, as the client is refusing to follow Moving Counsel’s advice, which is preventing Moving Counsel from being able to continue the representation. (ROA 58, 65, Judicial Council Form MC-052, Declaration in Support of Attorney’s Motion to be Relieved as Counsel, ¶ 2.) California Rules of Professional Conduct, Rule 1.16(b)(4) provides that a lawyer may withdraw from representing a client if “the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively.” Moving Attorney has also utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the notice, declaration, proposed order, and service requirements of California Rules of Court, rule 3.1362. The motion to be relieved as counsel of record is GRANTED. “An attorney may be allowed to withdraw without offending the rule against corporate self-representation.” (Thomas G. Ferruzzo, Inc. v. Superior Court (1980) 104 Cal.App.3d 501, 504.) However, an entity such as Defendant/Cross-Complainant Magic Brush Car Wash, LP, cannot represent itself. (Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284 n.5.) Defendant/Cross-Complainant Magic Brush Car Wash, LP, must obtain representation or risk forfeiting important rights by remaining unrepresented. (Ibid.) Defendant/Cross-Complainant Magic Brush Car Wash, LP, is ordered to obtain new counsel, and file evidence thereof with the court within 30 days from the notice. (CLD Constr., Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1150 “[T]he court retains authority to
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		dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”].) The order relieving Bryan Theis/Theis Law Group, PC as counsel of record for Defendant/Cross-Complainant Magic Brush Car Wash, LP is effective upon counsel filing proofs of service of a copy of the signed order, on the client and on all parties that have appeared in the case. (California Rules of Court, rule 3.1362(e).) Moving Counsel to give notice.
105	National Funding, Inc. vs. Klette Electric PLLC 25-01522615	Motion to Be Relieved as Counsel of Record x 2 Thomas D. Sands (“Moving Attorney”) moves to be relieved as counsel of record for defendants Klette Electric PLLC and Mary Klette. The motions are unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements of the applicable California Rules of Court are satisfied. Accordingly, the motions are GRANTED. The orders relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the clients and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
106	Creditors Adjustment Bureau, Inc., vs. L S R Builders, Inc. 25-01513310	Motion to Set Aside/Vacate Default and Judgment Defendant L S R BUILDERS, INC. (“Defendant” or “LSR”) moves this Court for an order setting aside and vacating the Default entered against Defendant and the Default Judgment entered on March 16, 2026.